

HOUSE No. 1939

The Commonwealth of Massachusetts

PRESENTED BY:

Angelo J. Puppolo, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to further clear titles to real property affected by technical irregularities in recorded instruments.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/13/2025</i>

HOUSE No. 1939

By Representative Puppolo of Springfield, a petition (accompanied by bill, House, No. 1939) of Angelo J. Puppolo, Jr., for legislation to further clear titles to real property affected by technical irregularities in recorded instruments. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to further clear titles to real property affected by technical irregularities in recorded instruments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 184 of the General Laws is hereby amended by striking out section
2 24 and inserting in place thereof the following section:-

3 Section 24. When any owner of land or of any interest in such land, signs an instrument
4 in writing conveying or purporting to convey his land or any interest therein, or in any manner
5 affecting or purporting to affect his title thereto or an interest therein, and the instrument,
6 whether or not entitled to record or registration, is recorded or registered and indexed in the
7 registry of deeds or registered land district for the district wherein such land is situated, and a
8 period of ten years elapses after the instrument is accepted for record or registration, and the
9 instrument or the record or registration thereof because of defect, irregularity or omission fails to
10 comply in any respect with any requirement of law relating (1) to seals, corporate or individual,
11 (2) to the form of grantor clause in which a person purports to grant, mortgage, assign, release or
12 discharge an interest in real property as representative of or on behalf of a person, trust or entity

13 who owns or holds such interest and is also named in the grantor clause, (3) to the form or
14 validity of an acknowledgment or a certificate of acknowledgment, (4) to witnesses, attestation,
15 proof, method or form of execution, or the time of execution, (5) to recitals of consideration,
16 residence, address, or date, (6) to the authority of a person executing such an instrument on
17 behalf of an individual under a power of attorney, (7) to the method or form by which a person
18 acting under a power of attorney executes such an instrument on behalf of the principal, (8) to
19 the authority of a person executing such an instrument on behalf of a trust or entity and
20 purporting to hold the office or position of trustee, manager, partner, president, vice president,
21 treasurer or other similar office or position, including assistant to any such office or position, or
22 otherwise purporting to be an authorized signatory for such trust or entity, including under a
23 power of attorney on behalf of such trust or entity, or (9) to the method or form by which such
24 person executes such an instrument on behalf of a trust or entity, such instrument and the record
25 thereof shall, notwithstanding any or all of such defects, irregularities and omissions, be effective
26 for all purposes to the same extent as though the instrument and the record thereof had originally
27 not been subject to the defect, irregularity or omission, or to the form of grantor clause in which
28 a person purports to grant, mortgage, assign, release or discharge an interest in real property in a
29 capacity other than that in which such person actually owns or holds such interest, unless within
30 said period of ten years a proceeding is commenced on account of the defect, irregularity or
31 omission, and notice thereof pursuant to section 15 of this chapter is duly recorded or registered
32 as appropriate and indexed and noted on the margin thereof under the name of the signer of the
33 instrument, the owner or holder of the affected interest at the time of the recording or registration
34 of the instrument and the record owner or holder of the interest at the time of the filing of such
35 notice and, in the event of such proceeding, unless relief is thereby in due course granted.

36 SECTION 2. The provisions of this Act shall apply to instruments and documents
37 recorded or registered before, on or after the effective date, except as to any such instruments or
38 documents for which a court proceeding challenging the effectiveness or validity of any such
39 instrument or document and the title derived therefrom has been commenced pursuant to this
40 section as in effect prior to said effective date.